

MAE VS. WILLOW SPRINGS CA, LLC, ET AL.

Case Number: 24CV-0205188

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued February 27, 2025, to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement as required by Rule of Court 3.1380(c). In light of the party's stipulation to continue trial, mandatory settlement conference, and pre-trial dates filed on March 5, 2025, the Order to Show Cause is **DISCHARGED**. **No appearance is necessary on today's calendar.**

MASSETT VS. AMERICAN AUTOMOBILE ASSOCIATION, ET AL.

Case Number: 24CV-0206073

Tentative Ruling on Motion for Reconsideration: Plaintiff Stacey Massett moves for reconsideration of one or more rulings made on March 3, 2025 by the Honorable Benjamin L. Hanna. CCP § 1008(a) requires the Application be made to the same judge who ruled on the underlying motion. Judge Hanna is not hearing the calendar today. The Court notes that a review hearing is set in this matter on May 19, 2025. This matter is continued to **Monday, May 19, 2025 at 8:30 a.m. in Department 63** for hearing on the motion. **No appearance is necessary on today's calendar.**

SEEKINS VS. VICTORY POWDER COATING, LLC

Case Number: 24CV-0204815

Tentative Ruling on Motion for Summary Adjudication: Defendant Victory Powder Coating, LLC moves for summary adjudication on the Third Amended Complaint filed by Plaintiff Brian Seekins. Plaintiff opposed the motion and raised a notice issue.

If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.

CRC 3.1350(b)

The Notice of Motion here reads that Defendant "will move the Court for Summary Adjudication of Plaintiff's claims set forth in his Third Amended Complaint." The specific causes of action and issues are not specifically stated in the Notice of Motion. The Notice of Motion is not compliant with CRC 3.1350(b).

The Motion for Summary Adjudication is **DENIED** without prejudice for insufficient notice and because it does not comply with CRC 3.1350(b). Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

9:00 a.m. – Review Hearings

ARELLANO VS. USA WASTE OF CALIFORNIA, INC.

Case Number: 22CV-0200801

This matter is on calendar for review regarding status of removal to Federal Court. The matter was removed on December 9, 2022. As it does not appear that this matter will be remanded, this matter is removed from the Court's control due to the removal to Federal Court. Any future hearing dates are vacated and no further appearances will be required. **No appearance is necessary on today's calendar.**